access to the GSO.[112] By allowing Tonga to obtain the GSO positions solely for the purpose of profit, a "new market" will likely be created in which GSO positions are allocated according to ability to pay.[113] Because such a system will increase the costs of satellite communications,[114] the developing countries, who can least afford to pay higher prices, will be squeezed out of the market.[115] Therefore, even though the 1988 WARC-ORB guarantees each nation a GSO position sufficient to provide coverage for their country, the new market system will likely prevent them from establishing any type of global satellite network.

VI. Conclusion

Even with the advancement of modern technology, the GSO will eventually reach its saturation point. While technological advances will allow for less spacing between satellites and thus a larger number of available positions, these same advances give more and more nations the ability to utilize satellite technology. Thus, the growing demand for communications will eventually consume any excess supply. To handle this problem, the nations of this world must come together and develop a fair and equitable system for the distribution of this finite resource.[116] While fairness and equity were the goals of the WARC-ORBs of the 1980's, the Tonga situation may prove these goals unachievable under the current system. Therefore, the global community must alter the current system to insure every nation equitable access as well as equal access.

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SOUTH AFRICA IN SPACE: THE NEW SPACE AFFAIRS ACT OF 1993

On 6 September 1993, the Republic of South Africa joined a rather exclusive club of states when the Space Affairs Act, No. 84 of 1993, assented to on 23 June, entered into force. The text is in English and in Afrikaans, both of which seem to be equally authentic.[3]

The enunciation of the Space Affairs Act came in response to two interrelated developments. The first one essentially consisted of the political change of South Africa from an international outcast to an accepted member of the international family of states. This development in its turn paved the way for a more particular development of growing

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[112] Stein, *supra* note 4, at A1.

[113] Ezor, *supra* note 2, at 915.

[114] *Id.* at 933.

[115] Stein, *supra* note 4, at A1.

[116] One solution proposed for handling this conflict is the creation of a World Communications Commission to handle such conflicts. Lyall, *supra* note 46, at 45.

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[3] Statutes of the Republic of South Africa, Trade and Industry, Issue No. 27 Supplementary, 21*ff*.

interest on the side of private industry in space activities.[4] These growing opportunities for private involvement in space activities require additional measures by South Africa with respect to its international obligations. South Africa is a party to the Outer Space Treaty of 1967 and the Rescue Agreement of 1968, whereas it has signed but not ratified the Liability Convention of 1972. Of the contents of the Act, the following points are noteworthy. *Section 1* provides for definitions *inter alia* of "dual-purpose technologies," "facility," "launching," "outer space," "space activities," and "space-related activities." Some of them upon closer research may amount to a valuable contribution to the discussions on definitional issues in international space law.

Section 2 provides the Minister of Trade and Industry with a central role in the formulation of South African space policy, while duly acknowledging international commitments and responsibilities of the Republic.

Section 4 establishes the South African Council for Space Affairs, whose objects and functions are outlined by *Section 5*. The Council, as its most important tasks, must implement South African space policy, advise the Minister on any matter regarding space activities, supervise and implement the international conventions, and issue licenses under Section 11 or amend, suspend or revoke them under Section 13. The Minister, however, holds the right, upon appeal, to overrule any of these decisions.[5] Revision of such appeal can be achieved by applying to the Supreme Court.[6] The Minister may appoint a Board of Inquiry for the purpose of "adjudication of any matter or any appeal in terms of this Act" under *Section 9*. The findings of the Board are not disclosed, but rather for the purpose of assisting the Minister in performing his tasks.[7] The Council in its turn may appoint "such inspectors as it may deem necessary to ensure that the provisions of this Act are complied with," according to *Section 10*. Such inspectors have rather far-reaching powers of investigation.[8]

Section 11 and the following sections discussed below provide for the licensing scheme. Subject to the licensing obligations are a rather comprehensive list of activities, including all space activities and space-related activities to the extent determined by the Minister of Trade and Industry.[9] The Council, in its conditions for granting a license, shall determine minimum safety standards, and take into account both national and international interests and obligations of the Republic.[10]

Section 13 defines the competence of the Council to amend, suspend

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[4] *See further* I. de Villiers Lessing, *South Africa: Recent Developments in Space Law*, in 1 TELECOMM & SPACE J. 139*ff.* (1994). Much of the following also has been based upon this particular article.

[5] Sec. 16.

[6] Sec. 17.

[7] Sec. 9(7).

[8] *Cf.* Sec. 10(4).

[9] Sec. 11(1), (a) through (e).

[10] Sec. 11(2).